

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3430 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Jonathan Wilk

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3430

By: Wilk, Manger, and Humphrey
of the House

and

Hamilton of the Senate

FLOOR SUBSTITUTE

An Act relating to court costs; amending 22 O.S. 2021, Section 983, as last amended by Section 2, Chapter 211, O.S.L. 2024 (22 O.S. Supp. 2025, Section 983), which relates to the payment of fines, costs, and fees in criminal cases; modifying list of circumstances that presumes certain defendants are unable to pay debts; requiring courts to enter cost judgments; authorizing courts to order conditions for payment at the initial or subsequent cost hearings; requiring every county to utilize and participate in the court cost compliance program; establishing procedures when defendants default on payment plans; requiring referral to the court cost compliance program; directing court clerks to provide certain information to court cost compliance liaisons; deleting procedures related to the issuance of a Warning/Notice to Appear; providing procedures for collecting and distributing funds; amending 28 O.S. 2021, Section 101, as amended by Section 4, Chapter 247, O.S.L. 2023 (28 O.S. Supp. 2025, Section 101), which relates to court financial obligations in criminal cases; directing courts to enter judgments if defendants are unable to pay; establishing procedures when judgments are issued by the court; providing for stays of enforcement; prohibiting stays under certain circumstances; prohibiting judgments from becoming unenforceable; requiring certain

1 information in judgments; and providing an effective
2 date.

3
4 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

5 SECTION 1. AMENDATORY 22 O.S. 2021, Section 983, as last
6 amended by Section 2, Chapter 211, O.S.L. 2024 (22 O.S. Supp. 2025,
7 Section 983), is amended to read as follows:

8 Section 983. A. As used in this section, unless the context
9 otherwise requires:

10 1. "Cost arrest warrant" means a warrant authorizing arrest
11 that is issued by a court under the following circumstances:

12 a. failure to comply with the terms of a court financial
13 obligations payment plan,

14 b. failure to appear at a cost hearing or willfulness
15 hearing, or

16 c. failure to appear at the office of the court clerk of
17 the county in which the court financial obligation is
18 owed within ten (10) business days of being cited by a
19 law enforcement officer to appear;

20 2. "Cost cite and release warrant" means a warrant issued by a
21 court authorizing citation and release under the following
22 circumstances:

23 a. failure to comply with terms of a court financial
24 obligations payment plan, or

b. failure to appear at a cost hearing or willfulness hearing;

3. "Cost hearing" means a hearing in which the court determines the ability of a defendant to pay court financial obligations. Once a cost hearing date has been set, all court financial obligations shall be suspended until the cost hearing has been held;

4. "Court financial obligation" means all financial obligations including fines, costs, fees, and assessments, imposed by the court or required by law to be paid, excluding restitution or payments to be made other than to the court clerk;

5. "Payment-in-full" means a court financial payment term that requires the defendant to pay the full amount of court financial obligations owed within ninety (90) days of a plea or sentence in the district court or within thirty (30) days of a plea or sentence in the municipal court;

6. "Payment-in-installments" means payment terms for court financial obligations that require the defendant to make monthly payments in any amount until the amount owed is fully paid; and

7. "Willfulness hearing" means a hearing in which the court determines whether a defendant who has previously been found to have the ability to pay court financial obligations has willfully failed to pay the debt.

~~B. 1. Except in cases provided for in Section 983b of this title, when the judgment and sentence of a court, either in whole or~~

1 ~~in part, imposes court financial obligations upon a defendant, the~~
2 ~~court at the time of At sentencing may immediately, or at any point~~
3 ~~thereafter until the debt is either paid or waived, determine the~~
4 ~~ability of a defendant to pay the court financial obligations. The~~
5 ~~for any criminal offense, the court may make such determinations at~~
6 ~~a cost hearing or upon written motion or affidavit by the defendant.~~
7 ~~The ability of a defendant to pay court financial obligations may~~
8 ~~not impact the sentence imposed.~~

9 ~~2. Defendants with court financial obligations who are found by~~
10 ~~shall impose any fines, court costs, fees, and assessments~~
11 ~~authorized by law, subject to the provisions of paragraphs 3 and 4~~
12 ~~of this subsection and subsection C of this section.~~

13 ~~2. At the time of sentencing, the court to be unable to pay, in~~
14 ~~whole or in part, shall be relieved of the debt by the court through~~
15 ~~a hardship waiver of the court financial obligations, either in~~
16 ~~whole or in part offer to conduct, contemporaneously with~~
17 ~~sentencing, an ability-to-pay hearing to determine the ability of~~
18 ~~the defendant to satisfy such financial obligations.~~

19 3. In determining the ability of a defendant to pay, the court
20 shall consider the following factors:

- 21 a. individual and household income,
- 22 b. household living expenses,
- 23 c. number of dependents,
- 24 d. assets,

- e. child support obligations,
- f. physical or mental health conditions that diminish the ability to generate income or manage resources,
- g. additional case-related expenses to be paid by the defendant, and
- h. any other factors relevant to the ability of the defendant to pay.

4. In determining the ability of a defendant to pay, the following shall not be considered as income or assets:

- a. child support income,
- b. any monies received from a federal, state, or tribal government need-based or disability assistance program, or
- c. assets exempt from bankruptcy.

5. Defendants in the following circumstances are presumed unable to pay and eligible for relief under paragraph 2 of this subsection:

- a. designated as totally disabled by any federal, state, or tribal disability services program including but not limited to military disability, Social Security Disability Insurance, Supplemental Security Income, or tribal disability benefits,
- b. receives support from the state, local, or federal benefits based on indigency or receives need-based

1 public assistance such as Temporary Assistance for
2 Needy Families program, Supplemental Nutrition
3 Assistance Program, the Special Supplemental Nutrition
4 Program for Women, Infants, and Children nutrition
5 education and supplemental food program, or any other
6 federal need-based financial support,

7 c. receives subsidized housing support through the
8 Housing Choice Voucher program, the United States
9 Department of Housing and Urban Development, or other
10 state, local, or federal government housing subsidy
11 program, or

12 d. total income is below one hundred fifty percent (150%)
13 of the federal poverty level.

14 ~~C. 1. At the time of a plea or sentencing, the court shall~~
15 ~~inform the defendant of the total court financial obligations owed,~~
16 ~~the consequences of failing to pay 6. If the court financial~~
17 ~~obligations, and finds that any of the foregoing conditions are~~
18 ~~satisfied, the defendant may request a cost hearing if at any time~~
19 ~~he or she is shall be presumed~~ unable to pay the court financial
20 ~~obligations, at which point the court may waive all or part of the~~
21 ~~debt owed and the fines, court costs, fees, and assessments, shall~~
22 ~~be waived in whole. If the total amount of court financial~~
23 ~~obligations owed is not available at the time of the plea or~~
24 ~~sentencing, the The~~ court shall inform the defendant that court

1 ~~financial obligations have been incurred and the time and location~~
2 ~~where the defendant may learn of the total amount owed~~ make written
3 findings to support such waiver.

4 ~~2.~~ 7. The court shall order the defendant to appear immediately
5 after the sentencing and ability to pay at the office of the court
6 clerk to provide current contact information and ~~to either select~~
7 payment terms or request a cost in accordance to the ability to pay
8 hearing. ~~Failure to immediately report to the court clerk shall~~
9 ~~result in the full amount of court financial obligations to be due~~
10 ~~thirty (30) days from the date of the plea or sentencing in district~~
11 ~~courts or thirty (30) days from the date of the plea or sentencing~~
12 ~~in municipal courts.~~

13 ~~3.~~ Payment of court financial obligations may be made under the
14 following terms:

- 15 a. ~~payment in full, or~~
16 b. ~~payment in installments.~~

17 ~~Upon any change in circumstances affecting the ability of a~~
18 ~~defendant to pay, a defendant may request a cost hearing before the~~
19 ~~court by contacting the court clerk.~~

20 ~~4.~~ The district court for each county and all municipal courts
21 shall provide a cost hearing for any defendant upon request, either
22 by establishing a dedicated docket or on an as-requested basis. A
23 defendant who requests a cost hearing will receive a summons by
24 personal service or by United States mail to appear in court as

1 ~~required by subsection C of this section. If a defendant fails to~~
2 ~~appear for a requested cost hearing, the court may issue either a~~
3 ~~cost cite and release warrant or a cost arrest warrant. No fees~~
4 ~~shall be assessed or collected from the defendant as a consequence~~
5 ~~of either requesting a cost hearing or the issuing of a cost cite~~
6 ~~and release warrant.~~

7 ~~D. In determining the ability of the defendant to pay court~~
8 ~~financial obligations, the court may rely on testimony, relevant~~
9 ~~documents, and any information provided by the defendant using a~~
10 ~~cost hearing affidavit promulgated by the Court of Criminal Appeals.~~
11 ~~In addition, the court may make inquiry of the defendant and~~
12 ~~consider any other evidence or testimony concerning the ability of~~
13 ~~the defendant to pay.~~

14 ~~E. 1. If at the initial cost hearing or any subsequent cost~~
15 ~~hearing, C. If neither paragraphs 3, 4, or 5 of subsection B of~~
16 ~~this section are satisfied and the court determines that the~~
17 ~~defendant is able has some ability to pay ~~some or all of~~ but not the~~
18 ~~ability to pay the full amount, the court ~~financial obligations, the~~~~
19 ~~court may order any of the following conditions for payment:~~

- 20 ~~a. payment in full,~~
- 21 ~~b. payment in installments,~~
- 22 ~~c. financial incentive under a set of conditions~~
23 ~~determined by the court, or~~

1 d. ~~community service in lieu of payment; provided, the~~
2 ~~defendant shall receive credit for no less than two~~
3 ~~times the amount of the minimum wage specified~~
4 ~~pursuant to state law for each hour of community~~
5 ~~service.~~

6 2. ~~Any~~ shall establish an installment plan consistent with the
7 financial capacity of the defendant ~~who fails to comply with the~~
8 ~~terms of the payment plan ordered by the court shall be considered~~
9 ~~delinquent and the court may issue either a cost cite and release~~
10 ~~warrant or a cost arrest warrant~~ and may reduce the amount owed or
11 impose payment in part or order community service in lieu of payment
12 or order the defendant to participate in another alternative
13 program.

14 F. D. If, at any later time, the court ~~determines that a waiver~~
15 ~~of any of the court~~ receives credible evidence that the financial
16 ~~obligations is warranted~~ circumstances of the defendant satisfies
17 one or more of the criteria in paragraphs 3, 4, or 5 of subsection B
18 of this section, or that the circumstances described in subsection C
19 of this section applies, or otherwise demonstrates an inability to
20 pay the full remaining balance, the court shall ~~apply the same~~
21 ~~percentage reduction equally to all~~ reopen the determination and may
22 reduce or waive the remaining fines, court costs, fees, and
23 assessments, ~~excluding restitution~~ accordingly. Nothing in this
24

1 section shall prohibit an individual from requesting a cost hearing
2 due to changed circumstances.

3 ~~G.~~ E. 1. A defendant is considered delinquent in the payment
4 of court financial obligations under the following circumstances:

5 a. when the total amount due has not been paid by the due
6 date, or

7 b. when no installment payments have been received ~~in the~~
8 ~~most recent ninety day period~~ and:

9 (1) the ability to pay was determined pursuant to
10 subsection C of this section in the most recent
11 one-hundred-twenty-day period, or

12 (2) the ability to pay was not determined pursuant
13 subsection B, C, or D of this section in the most
14 recent sixty-day period.

15 2. The court clerk shall periodically review cases for
16 delinquency at least once every ~~six (6)~~ three (3) months and, upon
17 identifying a delinquent defendant, notify the court which shall,
18 within ten (10) days thereafter, set a cost hearing for the court to
19 determine if the defendant is able to pay pursuant to the criteria
20 set forth in this section. The cost hearing shall be set within
21 ~~forty-five (45)~~ thirty (30) days of the issuance of the summons.
22 The hearing shall be set on a date that shall allow the court clerk
23 to issue a summons fourteen (14) days prior to the cost hearing.

1 Defendants shall incur no additional fees associated with the
2 issuance of the summons.

3 3. At least fourteen (14) days prior to the cost hearing, the
4 court clerk shall issue one summons to the defendant to be served by
5 United States mail to the mailing address of the defendant on file
6 in the case, substantially as follows:

7 SUMMONS

8 You are ORDERED to appear for a COST HEARING at a specified
9 time, place, and date to determine if you are financially able to
10 pay the fines, costs, fees, or assessments or an installment due in
11 Case No. _____.

12 YOU MUST BE PRESENT AT THE HEARING.

13 At any time before the date of the cost hearing, you may contact
14 the court clerk and pay the amount due or request in writing or in
15 person prior to the court date, that the hearing be rescheduled for
16 no later than thirty (30) days after the scheduled time.

17 THIS IS NOT AN ARREST WARRANT. However, if you fail to appear
18 for the cost hearing or pay the amount due, the court may issue a
19 WARRANT and ~~may~~ shall refer the case to a court cost compliance
20 liaison which will cause an additional administrative fee of up to
21 thirty-five percent (35%) to be added to the amount owed and may
22 include additional costs imposed by the court.

23 4. Referrals to the court cost compliance program as provided
24 in subsection L of this section shall be made as follows:

- 1 a. courts shall refer a case to the court cost compliance
2 program upon the issuance of a cost arrest warrant,
- 3 b. courts ~~may~~ shall have a cost hearing when ability to
4 pay was determined by subsections C or D of this
5 section. If the defendant does not appear for the
6 cost hearing, the court shall refer a case to the
7 court cost compliance program upon the issuance of a
8 cost cite and release warrant; provided, the defendant
9 is delinquent and has had sufficient notice and
10 opportunity to have a cost hearing, or
- 11 c. courts may refer a case to the court cost compliance
12 program without the issuance of a warrant; ~~provided,~~
13 ~~the defendant is delinquent and has had sufficient~~
14 ~~notice and opportunity to have a cost hearing for~~
15 individuals with ability to pay that is not determined
16 pursuant to subsection B, D, or E of this section.

17 5. A municipal court, in lieu of mailing the summons provided
18 for in this subsection, may give the summons to the defendant in
19 person at the time of sentencing or subsequent appearance of a
20 specific date, time, and place, not fewer than thirty (30) days nor
21 more than one hundred twenty (120) days from the date of sentencing
22 to appear for a cost hearing if the court financial obligations
23 remain unpaid.

1 ~~H.~~ F. 1. If a defendant is found by a law enforcement officer
2 to have an outstanding cost cite and release warrant, the law
3 enforcement officer shall issue a Warning/Notice to appear within
4 ten (10) business days of release from detention on the warrant to
5 the court clerk of the court in which the court financial
6 obligations are owed. If the officer has the necessary equipment,
7 the officer shall immediately transmit the Warning/Notice
8 electronically to the court clerk of the court in which the court
9 financial obligations are owed. The law enforcement officer shall
10 not take the defendant into custody on the cite and release warrant.
11 If the law enforcement officer is unable to transmit the
12 Warning/Notice electronically to the court clerk, the officer shall
13 inform the appropriate department staff member within the agency of
14 the law enforcement officer of the Warning/Notice within five (5)
15 days. The department staff member shall then promptly notify the
16 law enforcement agency in the jurisdiction that issued the warrant
17 electronically who shall promptly notify the court clerk. The
18 electronic communication shall be treated as a duplicate original
19 for all purposes in any subsequent hearings before the appropriate
20 court.

21 2. If the defendant reports to the office of the court clerk
22 within the ten (10) business days, the court clerk shall:

- 23 a. inform the court of the Warning/Notice to the
24 defendant and contact,

1 b. schedule a cost hearing pursuant to applicable local
2 court rule, and

3 c. submit the warrant to the court for recall pending the
4 cost hearing.

5 3. If the defendant fails to report to the office of the court
6 clerk within the ten (10) business days, the court:

7 a. may issue a cost arrest warrant for the arrest of the
8 defendant if the ability to pay was determined
9 pursuant to subsections C or D of this section, or

10 b. issue a cost arrest warrant for the arrest of the
11 defendant if the ability of the individual to pay was
12 not determined pursuant to subsections B, C, or D of
13 this section.

14 4. Following an arrest on a cost arrest warrant, the defendant
15 must be released after ~~seventy-two (72)~~ twenty-hour (24) hours in
16 custody. The defendant may be released prior to ~~seventy-two (72)~~
17 twenty-hour (24) hours if:

18 a. the custodian is presented with proof of payment in
19 the amount of One Hundred Dollars (\$100.00) to each
20 jurisdiction where the court financial obligations are
21 owed and the new cost hearing date is provided,

22 b. the court releases the defendant on the defendant's
23 own recognizance and a new cost hearing date is
24 provided, or

1 c. the court conducts a cost or willfulness hearing, as
2 appropriate, pursuant to the provisions of this
3 section and determines the defendant should be
4 released.

5 5. The provisions for issuing a separate summons described in
6 subsection G of this section shall not apply to a municipal court if
7 the municipal court has previously provided actual personal notice
8 to the defendant of an opportunity for a cost hearing. If such
9 notice was given and the defendant fails to appear, the municipal
10 court ~~may~~ shall issue either a cost cite and release warrant or a
11 cost arrest warrant.

12 6. All warrants for failure to appear at a cost hearing or for
13 failure to pay court financial obligations which have been issued
14 prior to the effective date of this act and which remain unserved,
15 shall be treated as cost cite and release warrants and referred to
16 the court cost compliance program unless the ability of the
17 defendant to pay was determined by subsections B, C, or D of this
18 section. All warrant fees assessed for warrants for failure to
19 appear at a cost hearing or for failure to pay court financial
20 obligations issued prior to the effective date of this act shall
21 remain in effect unless waived by the court in accordance with
22 subsections B, C, and D of this section.

23 ~~F.~~ G. Supporting documents in a motion or affidavit for relief
24 from court financial obligation debt or any documents taken into

1 evidence during a cost hearing or willfulness hearing shall not be
2 viewable by the public on a court-controlled website.

3 ~~J.~~ H. 1. After a cost hearing where a defendant is found able
4 to pay a court financial obligation, either in whole or in part, and
5 then becomes delinquent in that payment, a court may conduct a
6 willfulness hearing at any time beginning immediately after a cost
7 hearing has been held and a decision rendered on the court financial
8 obligations. Findings of a defendant's prior ability to pay may be
9 considered as evidence of ability to pay or willfulness at the
10 hearing. The requirements of this paragraph shall not be construed
11 to prohibit the court from holding subsequent cost hearings on the
12 same court financial obligations.

13 2. At a willfulness hearing, the court shall evaluate the
14 following:

- 15 a. whether a cost hearing has been held previously where
16 evidence relating to ability to pay was presented and
17 the court found the defendant was able to pay the
18 court financial obligations, either in whole or in
19 part,
- 20 b. whether there is any new evidence of ability to pay
21 not previously considered or a change in circumstances
22 since the cost hearing,

- c. whether the defendant was afforded sufficient time and opportunity to fulfill the obligation to pay the court financial obligations,
- d. whether the defendant made any efforts to satisfy the court financial obligations, and
- e. whether there are any other relevant facts or circumstances.

3. After a finding of willful failure to pay court financial obligations, the court may impose a jail sentence pursuant to Section 101 of Title 28 of the Oklahoma Statutes. A jail sentence may be imposed only under the following circumstances:

- a. the hearing is conducted on the record pursuant to the rules promulgated by the Court of Criminal Appeals, and
- b. the defendant is represented by counsel or expressly waives his or her right to counsel.

4. If a jail sentence is imposed, the court may grant credit for any time already served. At any time after incarceration, the jail sentence may be satisfied upon payment in full of the outstanding balance with credit for any time already served.

~~K. The district court or municipal court, within one hundred twenty (120) days from the date upon which the person fails to comply with the financial obligation as ordered by the court or fails to appear for the offered cost or willfulness hearing, may, if~~

~~the defendant has previously been notified of the possibility of a suspension, send notice of nonpayment of any court-ordered financial obligation for a moving traffic violation to Service Oklahoma with a recommendation of suspension of~~

~~I. No person shall have his or her driving privileges of the defendant until the total amount of any court financial obligation has been paid or waived by the court. Upon receipt of payment of the total amount of the court financial obligations for the moving traffic violation, the court shall send notice thereof to Service Oklahoma, if a nonpayment notice was sent as provided for in this subsection. Notices sent to Service Oklahoma shall be on forms or by a method approved by Service Oklahoma~~ suspended for failure to pay fines, court costs, fees, or assessments.

~~J. 1. If a defendant is referred to the court compliance program pursuant to paragraph 4 of subsection E of this section, the court shall enter a cost judgment pursuant to the provisions of Section 101 of Title 28 of the Oklahoma Statutes.~~

~~2. A municipal court shall have the ability to enter a cost judgment for cost obligations one hundred twenty (120) days after sending notice of nonpayment of any court-ordered financial obligation.~~

~~K. Every county and district court of this state shall fully utilize and participate in the court cost compliance program. Cases shall be referred to the court cost compliance program no more than~~

1 ~~sixty (60) days after the court has ordered the referral pursuant to~~
2 ~~paragraph 4 of subsection G of this section, unless the defendant~~
3 ~~pays the amount owed on the court financial obligation or an~~
4 ~~installment due.~~ When the court refers a case, the updated contact
5 information on file shall be forwarded to a court cost compliance
6 liaison for collection purposes.

7 ~~M. L. The Court of Criminal Appeals shall implement procedures~~
8 ~~and rules for implementation of the requirements of this section.~~
9 ~~Such procedures, rules, and any supplemental forms may be made~~
10 ~~available by the Administrative Office of the Courts shall develop~~
11 standardized forms, procedural rules, and guidelines to aid courts
12 in conducting ability-to-pay hearings, documenting findings,
13 implementing reductions or waivers, and tracking compliance.

14 M. The provisions of this section shall apply to all sentences
15 imposed on or after November 1, 2026.

16 SECTION 2. AMENDATORY 28 O.S. 2021, Section 101, as
17 amended by Section 4, Chapter 247, O.S.L. 2023 (28 O.S. Supp. 2025,
18 Section 101), is amended to read as follows:

19 Section 101. A. The fees herein provided for the clerk of the
20 district court and the sheriff, as provided in this section, and all
21 costs in the prosecution of all criminal actions shall, in case of
22 conviction of the defendant, be adjudged a part of the penalty of
23 the offense of which the defendant may be convicted, whether the
24 punishment for such offense be either imprisonment, or fine, or

1 both, and fixed either by the verdict of the jury, or judgment of
2 the court, trying the case, ~~and if the defendant shall refuse to pay~~
3 ~~the court financial obligations, the payment of such fees and costs,~~
4 ~~in addition to the payment of the fine assessed, shall be enforced~~
5 ~~by imprisonment until the same shall be satisfied at a rate of up to~~
6 ~~One Hundred Dollars (\$100.00) per day of such fees and costs, or~~
7 ~~fine, or both, or shall be satisfied at a rate of up to Two Hundred~~
8 ~~Dollars (\$200.00) per day of such fees and costs, or fine, or both,~~
9 ~~should the defendant perform useful labor. If, at the time of~~
10 sentencing or anytime thereafter, the defendant is ~~without means to~~
11 ~~pay the fine~~ referred to the court cost compliance program pursuant
12 to paragraph 4 of subsection E of Section 983 of Title 22 of the
13 Oklahoma Statutes, then his or her fines, fees ~~or,~~ and costs, the
14 ~~total amount owed may~~ shall be entered as a judgment and thereupon
15 the same remedies shall be available for the enforcement of the
16 judgment as are available to any other judgment creditor.

17 ~~The~~ B. As used in this section, the term "all costs in the
18 prosecution of all criminal actions", ~~as used in this section,~~ shall
19 include all court financial obligations as defined in Section 983 of
20 Title 22 of the Oklahoma Statutes.

21 SECTION 3. This act shall become effective November 1, 2026.

22
23 60-2-17236 GRS 03/25/26
24